

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4130

By: Fetgatter of the House

and

Gollihare of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to crimes and punishments; amending
12 21 O.S. 2021, Section 941, as amended by Section 226,
13 Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
14 941), which relates to gambling games; providing
15 statutory reference; expanding scope of crime to
16 include online casino games; specifying types of
17 providers and suppliers of gambling games; defining
18 terms; and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 21 O.S. 2021, Section 941, as
21 amended by Section 226, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
22 2025, Section 941), is amended to read as follows:

23 Section 941. A. Except as provided in the Oklahoma Charity
24 Games Act or as otherwise authorized to be conducted on Indian lands
 in compliance with the Indian Gaming Regulatory Act, Section 2701,

1 et seq., of Title 25 of the United States Code, every person who
2 opens, or causes to be opened, or who conducts, whether for hire or
3 not, or carries on either poker, roulette, craps or any banking or
4 percentage, or any gambling game played with dice, cards or any
5 device, including, but not limited to, online casino games, for
6 money, checks, credits, or any representatives of value, or who
7 either as owner or employee, geolocation provider, gaming supplier,
8 platform provider, promoter, or media affiliate, whether for hire or
9 not, deals or provides support for those engaged in any such game,
10 shall be guilty of a Class C2 felony offense, and upon conviction
11 thereof, shall be punished by a fine of not less than Five Hundred
12 Dollars (\$500.00), nor more than Two Thousand Dollars (\$2,000.00),
13 and by imprisonment as provided for in subsections B through F of
14 Section 20M of this title.

15 B. For purposes of this section:

16 1. "Online casino games" means any gambling game that allows a
17 person to access the Internet, World Wide Web, or any part thereof
18 by way of any computer, computer system, computer network, computer
19 software, computer terminal, or similar device including, but not
20 limited to, a cellular or mobile telephone, a smart or electronic
21 watch, or a tablet which, upon risking any representatives of value,
22 simulates any gambling game contemplated in this section or any
23 other form of gambling including, but not limited to, a slot machine
24 as defined in Section 964 of this title, a lottery as defined in

1 subsection A of Section 1051 of this title, a bingo game or U-PIK-EM
2 bingo game as defined in subsections 1 and 22 of Section 402 of
3 Title 3A of the Oklahoma Statutes, and any prohibited game as
4 contemplated in subsection H of Section 262 of Title 3A of the
5 Oklahoma Statutes; and

6 2. "Representatives of value" means any and all currency used
7 as part of a dual-currency system of payment allowing a person to
8 exchange such currency for any prize, award, cash, or cash
9 equivalent, or any chance to win any prize, award, cash, or cash
10 equivalent.

11 SECTION 2. This act shall become effective November 1, 2026.
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13 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
14 OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended and Coauthored.
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